

Motor Vehicle Procedure Manual
Title and Lien
Signature Requirements

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Legal Authority

[Section 319.001, Florida Statutes](#), provides the definition of a “valid passport” for the issuance of a certificate of Florida Title.

[Section 319.22\(2\)\(a\)1 a, Florida Statutes](#), provides that when a motor vehicle or mobile home is registered in the names of two or more persons as co-owners and the names are joined by the word, "or" such vehicle shall be held in joint tenancy. It is legally presumed that each owner has granted to the other co-owner the authority to dispose of all interest in the motor vehicle/mobile home and the signature of any co-owner on the certificate of title shall constitute proper endorsement for transfer to another person or persons. Upon the death of a co-owner, the interest of the decedent shall pass to the survivor as though title or interest in the vehicle/mobile home was held in joint tenancy. This provision shall apply even if the co-owners are husband and wife.

[Section 319.22\(2\)\(a\)1 b, Florida Statutes](#), provides that when a vehicle/mobile home is registered in the

names of two or more persons as co-owners and the names are joined by the word "and" the signature of each co-owner, or their personal representative shall be required to transfer the certificate of title to the vehicle or mobile home.

[Section 319.23\(9\), Florida Statutes](#), provides in part, that the title certificate or application for title must contain the customer's full first name, middle initial, last name, date of birth, sex, and the license plate number. An individual customer must provide a valid driver license or identification card issued by Florida or another state, or a valid passport.

[Section 328.01\(1\)\(a\), Florida Statutes](#), provides that the application shall include the true name of the owner, the residence or business address of the owner, and the complete description of the vessel, including the hull identification number. The application shall be signed by the owner and shall be accompanied by personal or business identification and the prescribed fee. An individual customer must provide a valid driver license or identification card issued by this state or another state or a valid passport. A business customer must provide a federal employer identification number, if applicable, verification that the business is authorized to conduct business in the state, or a Florida city or county business license or number.

[Section 328.01\(7\)\(d\)2 a](#), Florida Statutes, provides that "proper endorsement" means the signature of one of the co-owners when the vessel is held in joint tenancy, signified by the vessel being registered in the names of two or more persons as co-owners in the alternative using the word "or." In a joint tenancy, each co-owner is considered to have granted to each of the other co-owners the absolute right to dispose of the title and interest in the vessel, and, upon the death of a co-owner, the interest of the decedent in the jointly held vessel passes to the surviving co-owner or co-owners. This subparagraph is applicable even if the co-owners are husband and wife.

[Section 328.01\(7\)\(d\)2 b](#), Florida Statutes, provides for the signatures of every co-owner or of the respective personal representatives of the co-owners, if the vessel is registered in the names of two or more persons as co-owners in the conjunctive using the word "and."

A business customer must provide a federal employer identification number, if applicable, verification that the business is authorized to conduct business in the state, or a Florida city or county business license or number. In lieu of the license plate number, the individual or business customer must provide an affidavit certifying that the motor vehicle to be titled will not be operated upon the public highways of this state.

Description and Use

This procedure provides information and instructions to assist employees of the tax collector, license plate agent, and the Florida Department of Highway Safety and Motor Vehicles (FLHSMV) in establishing sufficient signature requirements for certificate of title and registration purposes.

Special Instructions

- A. If the conjunction between the names is “OR”, please provide each of the following:
- Original application for title —requires all customer(s) signatures.
 - Duplicate title application—requires only one titled owner’s signature.
 - HSMV forms (other than original application for title)—requires only one titled owner’s signature.
 - Transferring ownership to a new purchaser—requires only one title owner’s signature to transfer.
- B. If the conjunction between the names is “AND”, please provide each of the following:
- Original application for title —requires all customer(s) signatures.
 - Duplicate title application—requires all titled owners’ signatures.

- HSMV forms—requires all titled owners' signatures.
- Transferring ownership to a new purchaser—requires all titled owners' signatures.

C. Proof of identity must be requested from the customer at the time of application for title.

A copy of the proof must be submitted with the application for title unless the proof is a valid Florida driver license or identification card. If proof is other than a FL driver license or identification card, the type of proof submitted, and its corresponding number, must be entered in the "Comments" section in the motor vehicle issuance system.

D. Any officer/agent of a corporation/company signing required documentation for the business must specify their "official title" on the paperwork. Proof that the officer/agent is authorized to sign for the business can be verified at: <https://dos.myflorida.com/sunbiz/>

If proof cannot be obtained through the above web address, a letter on original business letterhead stating that the person signing the application is authorized to do so and be signed by an officer of the business who is someone other than the person signing the application. This does not apply to motor vehicle or vessel dealers.

E. Name Change:

When a person changes his/her name (i.e., marriage, divorce, or court order) on their Florida driver license or identification card, the updated information will reflect in the motor vehicle issuance system when a transaction is processed (renewal, etc.), if the DL or identification card is associated with the record.

Even though a person's Florida paper title may be in their old name, the motor vehicle issuance system will reflect the updated information. Therefore, when the owner renews their registration or applies for a duplicate title, it will print with the new name. However, if the owner chooses to physically change the name on the paper title, they must submit the title along with an affidavit stating they want the title to reflect their new name. This serves as backup documentation for

issuing the title in the new name. The transaction will be processed as a modify title and fees will apply.

The same information applies to out-of-state titles. If a customer comes in with an out-of-state title in their old name (no one being added or deleted) and provides proof of the name change, the same affidavit will suffice for backup documentation for titling in the new name.

A customer may choose to complete the title for transfer to their new name in lieu of submitting the affidavit.

- F. Owner's full first name, middle or maiden name and last name must be shown on the Florida Certificate of Title or the application for a certificate of title.

The name on the application should be shown exactly as the name appears on the driver license or identification card issued by Florida or another state or the valid passport or passport card that was used to create the customer. If the customer is a business, the name on the application should be shown exactly as it appears on the corporate charter and the FEID number should be submitted if applicable. Otherwise, verification that the business is authorized to conduct business in Florida, or a Florida city, or county business license or number should be submitted.

- G. Chapters [317](#), [319](#), [320](#), [328](#), Florida Statutes, and [Rule 15C-21.001, Florida Administrative Code](#), provides that the application for title must include the residence or business address of the owner.
- If a customer does not have a valid, or otherwise unexpired, Florida Driver License (DL) or Identification Card (ID), users may add or update both residential and mailing address.
 - If a customer has a valid Florida DL or ID, users may only update the mailing address. Changes to a customer's residential address should only be made as part of a DL or ID replacement or renewal transaction to ensure the customer can update his or her voter information in accordance with [s.97.057](#) and [s.98.065](#).

H. “Possible Imposter – Identity Verification Required. A primary identification document must be provided.” This alert had traditionally been associated with a driver license record. If the motor vehicle issuance system record displays this message, review the customer’s record for any MV fraud-related stops. If no fraud stops are present, proceed with the transaction. If fraud stops are present, contact the MV Fraud Unit.

Miscellaneous Information

- A. Computer-generated, laser-printed, or original stamped signatures of the owner or co-owner are acceptable on applications for title, affidavits, etc. However, they are not acceptable when an odometer disclosure is required.

The Code of Federal Regulations, [49 CFR s. 580.5\(c\)](#), requires that a transferor of a motor vehicle provide an odometer disclosure statement, which must be "signed by the transferor, including the printed name." Similarly, [49 CFR s. 580.5\(f\)](#), requires that the transferee must "sign the disclosure statement and print their name." Therefore, buyers and sellers must sign and print their names when completing odometer disclosure statements. The disclosure statement will not be accepted without a signature and printed name.

1. EXCEPTION: A Manufacturer's Certificate of Origin (MC) (new vehicle) submitted with computer-generated/laser-printed or original stamped signatures in the odometer disclosure area is acceptable.

Do NOT reject the documentation if the "printed name" is not handwritten (Example: typed, stamped, etc.). However, the documentation must be rejected if the "printed name is left blank.

2. Exception: (See INFO 20-019) Dealers and Manufacturers can submit electronically signed versions of the Application for Certificate of Motor Vehicle Title - HSMV 82040, Application for Duplicate or Lost In Transit/Reassignment for a Motor Vehicle, Mobile Home or Vessel Title

Certificate - HSMV 82101, Separate Odometer Disclosure Statement and Acknowledgment - HSMV 82993, Motor Vehicle Title Reassignment Supplement - HSMV 82994, and Motor Vehicle Power of Attorney/Odometer Disclosure - HSMV 82995 forms to make odometer disclosures. For each application for a certificate of title involving an electronically signed odometer disclosure statement, dealers or manufacturers must provide documentation to show the history, activity, and other identifying information such as location, internet protocol address or timestamps, sufficient to create an audit trail if the signature is later repudiated (for example, if it is a DocuSign product, the Certificate of Completion must be submitted). An attestation statement on the dealer's or manufacturer's letterhead must accompany the transaction documents and should include the below verbiage:

- a. [Dealer/Manufacturer] attests that the electronic signature(s) on the odometer disclosure documents meet the requirements set forth by National Highway Traffic Safety Administration Rule 49 CFR 580 for assurance Level 2.
3. EXCEPTION: (See INFO20-014) Insurance companies can submit electronically signed versions of HSMV 82363, HSMV 82993, HSMV 82994, and HSMV 82995 forms to make odometer disclosures in connection with total loss transactions pursuant to section 319.30, F.S. For each application for a certificate of title involving an electronically signed odometer disclosure statement, insurance companies must provide documentation to show the history, activity, and other identifying information such as location, internet protocol address or time stamps, sufficient to create an audit trail if the signature is later repudiated (for example, if it is a DocuSign product, the Certificate of Completion must be submitted). An attestation statement on the insurance companies' letterhead must accompany the transaction documents and should include the below verbiage:
 - a. [Insurance Company] attests that the electronic signature(s) on the odometer disclosure documents meet the requirements set forth by National Highway Traffic Safety Administration Rule 49 CFR 580 for assurance Level 2.

- B. The signature of a customer or a person appointed "attorney in fact" is acceptable on any HSMV form or other document in a title transaction. If someone else has signed for the customer, a photocopy or electronically transmitted copy of an original power of attorney must accompany the application. Form HSMV 82995, Motor Vehicle Power of Attorney/Odometer Disclosure, MUST be the ORIGINAL; a photocopy or electronically transmitted copy is not acceptable.
- C. A signature may be printed or indicated in a manner other than manually or printed, such as an "X."
- D. What is considered acceptable proof of identification and when must this proof be submitted to FLHSMV?

The following is considered acceptable proof of identification:

- 1. A valid driver license or identification card issued by Florida or another state, (This includes any U.S. territory such as American Samoa, Guam, Marianas, Puerto Rico, and US Virgin Islands) or Canada.
- 2. A valid passport or passport card, which does not have to be issued by the United States. A valid passport is defined as an unexpired passport or passport card issued by the United States government; or an unexpired passport issued by the government of another country with: a stamp or mark affixed by the Federal Government onto the passport to evidence an authorize lawful presence in the United States; or an unexpired I-94, or current permanent resident card, or unexpired immigrant visa, issued by the Federal Government.

A legible copy of the proof of identification is required to be submitted with the paperwork to FLHSMV unless the proof submitted is a Florida driver license or identification card.

- E. Are Florida dealers required to submit a copy of their customer's identification?

If the dealer's work includes a completed form HSMV 82040, Application for Certificate of Title

With/Without Registration, which includes their customer's Florida driver license number or ID number, the paperwork should be accepted without a copy of the customer's driver license or ID card.

However, if their customer's proof of identification is something other than a Florida DL or ID card, the dealer must submit a legible copy of this proof with their customer's paperwork.

- F. Could we accept an expired driver license or an expired US/out of country passport as proof of identification? NO.
- G. Should we require documentation to prove that a business is valid, and should a copy of this proof be submitted to FLHSMV?

You should request documentation to prove the validity of a business, such as copies of governmentally filed FEID documents, fictitious name documents, corporation papers, "Certificate of Status" from the Department of State, etc.

However, this proof would not be required to be submitted to FLHSMV. When the customer is a business, it must provide a federal employer identification number, if applicable, verification that the business is authorized to conduct business in the state, or a Florida city or county business license or number.

Visit the Department of State's website to search for Florida companies, corporations, etc.

<https://dos.myflorida.com/sunbiz/search/>

- H. When a customer is currently in the motor vehicle issuance system database with a customer number (no DL or ID #) and they purchase an additional/replacement car or mobile home, will we require a DL or ID card to be issued to them?

All customers applying for title or registration must provide proof of identification. If they are a

Florida resident, they will need to apply for a Florida driver license or ID card, unless they are an active-duty member of the military stationed out of state, their spouse or dependent child. If they are from another country or state, they must submit acceptable proof of identification (see III, E. of this procedure).

- I. An Out-of-State Title Transfer Signature Requirement Chart is attached to this procedure as Exhibit A
- J. What form of identification is acceptable for a child under the age of 5?

A copy of the Birth Certificate would be acceptable.

- K. When a customer comes in to print an ELT title and the conjunction between the name is “and” only one signature is required.

Revision(s) to Procedure

04/26: Updated H. in Special Instructions section.

02/26: Added H. to Special Instructions section.

02/25: Added to “Legal Authority” section, Section 319.001, Florida Statutes, provides definition of a valid passport. Updated “Miscellaneous Information” section, Letter D, bullet 1: or Canadian, bullet 2: definition of a valid passport, removed bullet 3.

11/03/22 Chapters 317, 319, 320, 328, Florida Statutes, and Rule 15C-21.001, Florida Administrative Code, provides that the application for title must include the residence or business address of the owner. If a customer does not have a valid, or otherwise unexpired, Florida Driver License (DL) or Identification Card (ID), users may add or update both residential and mailing address. If a customer has a valid Florida DL or ID, user may only update the mailing address. Changes to a customer’s residential address should only be

made as part of a DL or ID replacement or renewal transaction to ensure the customer has the ability to update his or her voter information in accordance with sections 97.057 and 98.065(5)(a), Florida Statutes.

05/24/22: Updated Oklahoma requirement “and/or” with one signature required.

12/27/21 Added language to (C) page 3 “If proof is other than a FL driver license or identification card, the type of proof submitted, and its corresponding number must be entered in the “Comments” section in the motor vehicle issuance system”.

01/14/21: Conducted annual review. Changed “applicant” to “customer” and added language to section III A (2-3). Removed “notarization requirements must be followed if the HSMV form or another document provides for notarization” from section III (B) and historical section; “A signature may be printed or indicated in a manner other than manually or printed (such as an “X”)” from section III (C). Added (J) to section III.

4/4/18: Statutory review, linked to statutes. Added that Proof of Identification must be legible. Deleted headings “Note:” Added Historical Revisions section.

7/6/15: Corrected information on page 3.

Out-of-State Title Transfer Signature Requirements

Title Joined By:	And	Or	And/Or
Alabama	All signatures required	One signature required	One signature required
Alaska	All signatures required	One signature required	NA
Arizona	All signatures required	One signature required*	All signatures required
Arkansas	All signatures required	One signature required	NA
California	All signatures required	One signature required	One signature required
Colorado	All signatures required	All signatures required	All signatures required
Connecticut	All signatures required	One signature required	NA
Delaware	All signatures required	NA	One signature required
District Of Columbia	All signatures required	NA	NA
Georgia	All signatures required ****	NA	NA
Hawaii	All signatures required	All signatures required	All signatures required
Idaho	All signatures required	One signature required	NA
Illinois	All signatures required	All signatures required	All signatures required
Indiana	All signatures required	NA	NA
Iowa	All signatures required	One signature required	All signatures required

Title Joined By:	And	Or	And/Or
Kansas	All signatures required	One signature required	One signature required
Kentucky	All signatures required	One signature required	NA
Louisiana	All signatures required	NA	NA
Maine	All signatures required	All signatures required	NA
Maryland	All signatures required ****	All signatures required	All signatures required
Massachusetts	All signatures required ****	All signatures required	All signatures required
Michigan	All signatures required	All signatures required	All signatures required
Minnesota	All signatures required ****	All signatures required	NA
Mississippi	All signatures required	One signature required	All signatures required
Missouri	All signatures required	NA	NA
Montana	All signatures required ****	NA	NA
Nebraska	All signatures required	All signatures required	All signatures required
Nevada	All signatures required	One signature required	One signature required
New Hampshire	All signatures required	One signature required	NA
New Jersey	All signatures required ****	NA	NA
New Mexico	All signatures required	One signature required	All signatures required
New York	One signature required	One signature required	One signature required

Title Joined By:	And	Or	And/Or
North Carolina	All signatures required****	All signatures required	All signatures required
North Dakota	All signatures required	One signature required	NA
Ohio	All signatures required	NA	NA
Oklahoma	All signatures required	One signature required	One signature required
Oregon	All signatures required ****	All signatures required	All signatures required
Pennsylvania	All signatures required	NA	NA
Rhode Island	All signatures required	NA	NA
South Carolina	All signatures required	One signature required	NA
South Dakota	All signatures required	One signature required	One signature required
Tennessee	All signatures required	One signature required	One signature required
Texas	All signatures required	All signatures required	All signatures required
Utah	All signatures required	One signature required	One signature required
Vermont	All signatures required	All signatures required	All signatures required
Virginia	All signatures required ****	All signatures required	All signatures required
Washington	NA****	NA	NA
West Virginia	All signatures required	One signature required	One signature required
Wisconsin	All signatures required	One signature required	NA

Title Joined By:	And	Or	And/Or
Wyoming	All signatures required ****	One signatures required ****	All signatures required ****

NA - Not applicable *All owners must sign an official form authorizing either party to transfer the motor vehicle with one signature alone.

** Owner’s names joined by the figure "/", indicates the conjunction "and" requires all signatures.

*** A message is printed on the title which indicates the ownership is joint/not joint. If it is "joint" ownership, all signatures are required.

**** All signatures required when multiple names are shown on title and there is no indicator.